



CHAPTER xcvi.

An Act to confirm a Provisional Order under the Land Drainage Act 1861 in the matter of a proposed drainage district in the Parishes of Ince Thornton le Moors Little Stanney Great Stanney Stoke Wervin Wimbolds Trafford Picton Bridge Trafford Mickle Trafford Barrow Guilden Sutton Christleton Tarvin and Cotton Edmunds in the County of Chester. [3rd August 1910.] A.D. 1910.

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1861:

24 & 25 Vict.
c. 133.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. Subject to the provisions of this Act the Order set out in the schedule hereto shall be and the same is hereby confirmed and the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. In lieu of the sealed plan referred to in the said Order showing the lands forming the separate drainage district there shall be substituted the amended plan signed in triplicate by the Right Honourable Alfred Emmott Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and whereof one copy has been deposited in the Private Bill Office of the House of Commons one copy in the Parliament Substitution of amended plan for sealed plan referred to in Order.

A.D. 1910. Office of the House of Lords and one copy at the office of the Board of Agriculture and Fisheries and such amended plan shall for all purposes of this Act and the said Order prevail as though it were the sealed plan of the Board.

For protec-
tion of Mrs.
Clementina
Churchill
Park-Yates.

3. For the protection of Mrs. Clementina Churchill Park-Yates or other the owner for the time being of the Thornton Mill (herein-after called "the owner") the following provisions shall have effect (that is to say):—

The Drainage Board shall take all reasonable precautions to afford the owner at all times a sufficient supply of water for the working of the water wheel of the owner at Thornton Mill:

The owner shall give to the Drainage Board if and when required all reasonable facilities for enabling them to provide for the more efficient drainage of the land to the east and south of the Thornton Brook whether by alteration of the existing main trunk drain under the said brook or the provision of other trunk drains Provided that the Drainage Board shall give to the owner one calendar month's previous notice of their intention to interfere with the Thornton Brook for the purposes of such works and shall so far as is reasonably possible arrange with the owner as to the time for the commencement of the works But the owner shall not be entitled to claim compensation from the Drainage Board for any interruption of water supply caused by such works provided such interruption shall not exceed fourteen days in any one year.

Short title.

4. This Act may be cited as the Land Drainage Provisional Order Confirmation (No. 2) Act 1910.

S C H E D U L E.

A.D. 1910.

LAND DRAINAGE ACT 1861.

PROVISIONAL ORDER.

*In the matter of a proposed drainage district in the Parishes of
Ince Thornton le Moors Little Stanney Great Stanney
Stoke Wervin Wimbolds Trafford Picton Bridge Trafford
Mickle Trafford Barrow Guilden Sutton Christleton
Tarvin and Cotton Edmunds in the County of Chester.*

The Board of Agriculture and Fisheries in pursuance of the powers vested in them by the Land Drainage Act 1861 and the Board of Agriculture and Fisheries Acts 1889 and 1903 do by this Provisional Order constitute the lands shown on a plan sealed by the Board and therein coloured pink a separate drainage district under the Land Drainage Act 1861 :

And they do further by this their Provisional Order make the following regulations with respect to the Drainage Board (that is to say) :—

1. The Drainage Board for the said district shall consist of nine members.

2. The following persons shall be members of the first Drainage Board :—

Harry Barnston of Crewe Hill Farndon in the county of Chester ;
St. John Charlton of Cholmondeley Malpas in the said county ;
Charles Gamon of Bellavista West Kirby in the said county ;
Joseph Hayes of Ashwood House Farm Wervin in the said county ;

Charles Edward Hope of 20 Castle Street in the city of Liverpool ;
Charles Edward Linaker of Frodsham in the county of Chester ;
Frank Lloyd of the Holme House Farm Mickle Trafford in the said county ;

Richard George Henry Perryn of Trafford Hall in the said county ;
and

Robert Townshend Wickham of St. Werburgh's Chambers in the city of Chester.

3. The first meeting of the Drainage Board shall be summoned by a notice under the hands of any two or more members of the

A.D. 1910. Drainage Board which shall be published in some newspaper circulating extensively in the said district and shall be posted at the principal entrance doors of the places of public worship in the parishes above mentioned at least fourteen days before the day of meeting.

4. The qualification of any subsequent member of the Drainage Board shall be that he shall be (1) the proprietor of not less than ten acres of land within the said district or (2) the heir apparent of a proprietor (such proprietor not being himself a member of the Board) of not less than ten acres of land within the said district or (3) the occupying tenant yearly or otherwise of not less than twenty acres of land within the said district or (4) the agent of a proprietor of not less than ten acres of land within the said district such agent acting under a written appointment and his principal not being a member of the Board.

5. The members of the first Drainage Board shall vacate their office on the first Thursday in September in the year following that in which this Provisional Order shall have been confirmed by Parliament.

6. The electors for members of the Drainage Board shall be the persons who were during the year immediately preceding such election liable to be rated to any drainage rate of the said district leviable by the Drainage Board and have paid all such rates (if any) levied and due from them at the time of such election.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this eighteenth day of April nineteen hundred and ten.

(L.S.)

R. H. REW

Assistant Secretary.

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